STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.	**CASE 25-E-0072**
Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.	**CASE 25-G-0073**

Statement of Independent Intervenors Roger Caiazza, Richard Ellenbogen, and Francis Menton In Opposition to the Joint Proposal

November 26, 2025

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TABLE OF CONTENTS

PRELIMINARY STATEMENT 5

PROCEDURAL HISTORY.....7

STANDARD OF REVIEW 7

STATEMENT OF FACTS 9

A. CURRENT GHG EMISSIONS IN NEW YORK STATE ARE FAR IN EXCESS OF THE MANDATES OF THE CLCPA FOR 2030, AND THERE IS NO POSSIBILITY THAT EITHER THE 2030 CLCPA MANDATES, OR SUBSEQUENT CLCPA MANDATES, WILL BE ACHIEVED BY THE ESTABLISHED DEADLINES OR ANY REASONABLE TIME THEREAFTER 9

B. COMPANY CAPITAL SPENDING TO SUPPORT BUILDING AND VEHICLE ELECTRIFICATION AT THIS TIME IS WASTEFUL BECAUSE LACK OF SUFFICIENT AVAILABLE RENEWABLE ELECTRICITY PRECLUDES NEW YORK CITY AND THE STATE FROM PURSUING THOSE GOALS. FURTHER, ACCORDING TO THE NYISO THERE IS A HIGH PROBABLITY OF CAPACITY SHORTAGES OF ALL TYPES OF GENERATION IN THE DOWNSATE REGION COMMENCING IN 2026...13

C. THE COMPANY HAS FAILED AND REFUSED TO PROVIDE A BREAKDOWN AS TO WHICH COSTS IN THE JP ARE TO SUPPORT "RELIABILITY AND SAFETY" VERSUS WHICH ARE TO SUPPORT INFEASIBLE CLIMATE ACT GOALS 17

D. DUE TO THE EXISTING CHARACTERISTICS OF GENERATION AVAILABLE TO THE DOWNSTATE SYSTEM, PROCEEDING WITH BUILDING AND VEHICLE ELECTRIFICATION WILL LIKELY INCREASE RATHER THAN DECREASE GHG EMISSIONS IN THE COMPANY TERRITORY IN OPPOSITION TO THE GOALS OF THE CLCPA 21

E. NEW YORK STATE HAS CONCEDED IN A JUDICIAL FILING THAT COMPLIANCE WITH THE CLCPA GHG MANDATES FOR 2030 IS "INFEASIBLE" DUE TO EXCESSIVE CONSUMER COST. 28

F. PUBLICLY AVAILABLE DATA FROM ELSEWHERE IN THE WORLD DEMONSTRATES THAT ACHIEVEMENT OF THE CLCPA GHG REDUCTION MANDATES FOR ELECTRICITY GENERATION IS NOT ONLY INFEASIBLE, BUT ACTUALLY IMPOSSIBLE USING TODAY'S TECHNOLOGY IN ANY REASONABLE TIMEFRAME 32

ARGUMENT 37

A. BEFORE CONSIDERING ANY RATE INCREASE, THE ALJS AND THE COMMISSION SHOULD FIRST REQUIRE THE COMPANY TO BREAK DOWN ITS REVENUE REQUESTS BETWEEN THOSE SUPPORTING RELIABILITY AND SAFETY VERSUS THOSE SUPPORTING CLIMATE ACT GOALS. 38

B. ALL REVENUES INCLUDED IN THE JP THAT SUPPORT CLCPA GOALS AS OPPOSED TO SYSTEM RELIABILITY AND SAFETY SHOULD BE DISALLOWED AS PART OF ANY RATE INCREASE GRANTED TO THE COMPANY. 39

C. THE JP IS UNJUST, UNREASONABLE, AND CONTRARY TO THE PUBLIC INTEREST 40

CONCLUSION 41

PRELIMINARY STATEMENT

Roger Caiazza, Richard Ellenbogen, and Francis Menton (Independent Intervenors) hereby submit this Statement in Opposition of the Joint Proposal (JP) filed with the New York State Public Service Commission (Commission) by Consolidated Edison Company of New York (Company) and signatory parties in these proceedings on November 5, 2025. The Independent Intervenors respectfully submit this filing as ratepayers directly impacted by this proceeding and/or professionals with extensive backgrounds in New York State energy matters.

The Independent Intervenors object to the JP because it seeks to implement large rate increases for projects not necessary for or germane to reliability and safety of the electrical system and that are instead intended to support extraneous goals that are impossible and infeasible. The bases for the objections of the Independent Intervenors include:

- The JP supports spending for purposes of building electrification and vehicle electrification, but there is not enough zero-emissions electricity generation capacity available to the downstate region to accomplish those goals reliably, and therefore any spending on Company delivery infrastructure for these purposes is wasteful. The Independent Intervenors object to spending ratepayer money

supposedly for the delivery of electricity, when the electricity does not in fact exist.

- Spending by Company to support building and vehicle electrification is actually counterproductive for Climate Leadership & Community Protection Act (CLCPA) goals because there is and will be little zero-emission generation available to the Company service territory during and after the JP period. Therefore, building and vehicle electrification will increase rather than decrease GHG emissions.
- The JP supports large amounts of funding to achieve the "climate" goals of the State's CLCPA, but the relevant State agencies have already conceded and admitted that those goals are not achievable and will not be achieved in any time frame relevant to the spending in the JP.
- The State has admitted that achieving the CLCPA mandates, and in particular the 2030 emission-reduction mandates, are "infeasible."
- The CLCPA mandates for reduction of GHG emissions from the electricity system are in fact impossible to achieve, as is easily demonstrated by publicly available data from other jurisdictions, and therefore ratepayers should not be charged for wasteful spending to pursue impossible and unachievable goals.

PROCEDURAL HISTORY

The Company filed a request for new rates on January 31, 2025. The Independent Intervenors filed for party status in early June 2025. On June 13, 2025, the Commission invited comment concerning proposed changes in the electric and gas delivery rates and practices of the Company. On June 24 Independent intervenors responded to the request for comments with testimony and exhibits. Also on June 24, the Company filed with the parties and the Secretary to the Commission a Notice of Impending Settlement Negotiations. Settlement negotiations began on June 26, 2024, and continued through October 2025. A JP was filed by the Company on November 5, 2025.

STANDARD OF REVIEW

According to the Commission's Settlement Guidelines, "Commission decisions, including those pertaining to proposed settlements, must be, and appear to be, just, reasonable, and in the public interest."[1] The elements considered in determining the "public interest" include:

[1] Cases 90-M-0225 and 92-M-0138, Opinion, Order and Resolution Adopting Settlement Procedures and Guidelines (Mar. 24, 1992).

1. consistency with the law and regulatory economic, social and environmental State and Commission policies;
2. whether the terms of the joint proposal compare favorably with the likely result of a fully litigated case and produce a result within the range of reasonable outcomes;
3. whether the joint proposal fairly balances the interests of ratepayers, investors and the long-term soundness of the utility; and
4. whether the joint proposal provides a rational basis for the Commission's decision.

Additionally, the Commission is guided in their assessment by two additional factors. First, the completeness of the record, and second, whether the settlement is contested.[2]

The standard of review of any decision by the Commission to approve the JP is whether that decision is arbitrary, capricious, an abuse of discretion, or lacks substantial evidence.

[2] *Id.*

STATEMENT OF FACTS

A. CURRENT GHG EMISSIONS IN NEW YORK STATE ARE FAR IN EXCESS OF THE MANDATES OF THE CLCPA FOR 2030, AND THERE IS NO POSSIBILITY THAT EITHER THE 2030 CLCPA MANDATES, OR SUBSEQUENT CLCPA MANDATES, WILL BE ACHIEVED BY THE ESTABLISHED DEADLINES OR ANY REASONABLE TIME THEREAFTER

At this point New York State has no idea how it is going to generate sufficient "renewable" or "zero emissions" electricity to meet the 2030 and subsequent mandates of the CLCPA. Generation of the electricity is outside of the Company's purview, but the JP contains large amounts of spending by the Company to support the receipt and distribution of this non-existent electricity. This spending should not be allowed by the Commission until we know that the electricity is going to exist. Such spending should not occur during this three-year rate period.

The Draft New York State Energy Plan issued in July 2025 concludes that there is no scenario that will hit the 40% CLCPA-mandated reduction before 2036. In 2022, statewide emission reductions since 1990 were only down 9.3% far short of the 40% reduction required by 2030.

The CLCPA established two Greenhouse Gas (GHG) emission reduction targets. The ultimate limit is “Net Zero” - 85% reduction in GHG emissions and 15% offset of emissions by 2050. There also is an interim reduction target of a 40% GHG reduction by 2030. The numerical statewide greenhouse gas (GHG) emission limits for a 40% reduction from 1990 levels by 2030 were established by the New York State Department of Environmental Conservation (DEC) in regulation 6 NYCRR Part 496, titled "Statewide Greenhouse Gas Emission Limits". According to Environmental Conservation Law (ECL) § 75-0107(1), the official 2030 limit is set at 245.87 million metric tons of CO_2-equivalent statewide GHG emissions.

The Department of Environmental Conservation's 2024 Statewide GHG Emissions Report[3], covering data through 2022, revealed that New York emissions as of 2022 had achieved only a 9.3% reduction in gross GHG emissions from 1990 levels—far short of the 40% reduction theoretically required by 2030.

During the New York State Energy Research & Development Authority presentation[4] to the New York State Energy Planning Board meeting on June 25, 2025, Nick Patane, NYSERDA Assistant Director for Policy Analysis explained

[3] https://dec.ny.gov/environmental-protection/climate-change/greenhouse-gas-emissions-report#Report
[4] https://energyplan.ny.gov/-/media/Project/EnergyPlan/files/BoardMeetingSlides-62525-FINAL.pdf

that Pathways Analysis modeling for the New York State Draft Energy Plan stated that: "We do see here as we look at the 40% reduction target that no case is achieving a 40% reduction in 2030". The Key Takeaways (3/3) slide of his presentation stated "Under the current set of assumptions the planning scenarios will hit 40% reduction as soon as 2036."[5]

Other analyses by state agencies acknowledge that CLCPA implementation is so far behind schedule as to render the Company capital spending during the years 2026-28 in support of such mandates completely wasteful.

- The New York State Comptroller Office audit of the NYSERDA and PSC CLCPA implementation efforts described in "Climate Act Goals – Planning, Procurements, and Progress Tracking"[6] revealed critical deficiencies in planning, cost assessment, risk management, and progress tracking. The audit calls for "immediate action to improve planning and transparency."

- The Commission (PSC) "Clean Energy Standard Biennial Review Report"[7] issued May 15, 2025 compares the renewable energy deployment progress relative to the CLCPA goal to obtain 70% of New

[5] Ibid.
[6] https://www.osc.ny.gov/files/state-agencies/audits/pdf/sga-2024-22s4.pdf
[7] https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId=%7bF05ED596-0000-CF2F-A3A1-391B4DA423EA%7d

York's electricity from renewable sources by 2030 and found that 2030 goal will likely not be achieved until 2033. This figure was presented prior to the offshore wind moratorium imposed by the Federal Government this past year. so there is no reality to the 2033 date either, and the 2030 CLCPA goal will not be achieved any time soon, if ever.

- The Climate Act requires the Department of Public Service (DPS) to prepare an annual report. The "Second Informational Report"[8] dated September 18, 2025 prepared by DPS staff raised four feasibility concerns: the 2030 renewable energy target is "likely unattainable", offshore wind faces major obstacles, transmission remains a "critical bottleneck", and grid reliability challenges are mounting. There also are cost trajectory concerns.

Because there is overwhelming evidence that CLCPA implementation is not on schedule or feasible, large rate increases for subjects not necessary for or germane to reliability and safety of the system and instead intended to support fantasy CLCPA goals should be deferred.

[8] https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId=%7b40075E99-0000-C639-832F-142B5C387BBD%7d

B. COMPANY CAPITAL SPENDING TO SUPPORT BUILDING AND VEHICLE ELECTRIFICATION AT THIS TIME IS WASTEFUL BECAUSE LACK OF SUFFICIENT AVAILABLE RENEWABLE ELECTRICITY PRECLUDES NEW YORK CITY AND THE STATE FROM PURSUING THOSE GOALS. FURTHER, ACCORDING TO THE NYISO THERE IS A HIGH PROBABLITY OF CAPACITY SHORTAGES OF ALL TYPES OF GENERATION IN THE DOWNSATE REGION COMMENCING IN 2026.

On October 13, 2025, the New York Independent System Operator (NYISO) released its quarterly Short-Term Assessment of Reliability[9] (Q3 2025 STAR) of the bulk electric system. In the 2023 Quarter 2 STAR, the NYISO identified a short-term reliability need beginning in summer 2025 within New York City primarily driven by a combination of forecasted increases in peak demand and the assumed unavailability of the Gowanus and Narrows combustion turbines that are affected by the DEC regulation to limit emissions of nitrogen oxides, known as the "DEC Peaker Rule". The Q3 2025 STAR continues to find that New York City control area would be "deficient in the summer through the entire five-year horizon without the completion and energization of future planned projects" if the Gowanus and Narrows generators are retired. Those units may

[9] https://www.nyiso.com/documents/20142/39103148/2025-Q3-STAR-Report-Final.pdf/

extend operation for up to an additional two years (until May 1, 2029) if the NYISO or the Company determine that the reliability need still exists and a permanent solution has been identified and is in the process of construction but not yet online. The DEC Peaker Rule, however, does not provide for peaker generators to continue operating after this date without meeting the emissions requirements.

The Q3 2025 STAR report concluded these facilities are needed until Bulk Power Transmission Facilities (BPTF) can replace them. A BPTF is basically all the components of the transmission system (lines, transformers, and control systems) needed to move large amounts of electricity to where it is needed. There are four future BPTF projects described as components of the solution. Keep in mind that these facilities are needed to provide power during system peak loads.

1. Gowanus-Greenwood 345/138 kV feeder[10] – This project will upgrade the electric grid to resolve a local problem in NYC.

2. Champlain Hudson Power Express, 1,250 MW HVDC[11] – This project brings hydropower from Quebec through a dedicated transmission line to NYC. When it first was proposed the peak loads were in the summer. The contract does not guarantee power from Hydro Quebec if it is needed within the province. In the future of the CLCPA, peak loads will shift to the winter when

[10] ttps://www.nyiso.com/documents/20142/49295323/CECONY's_LTP_Update_1_21_2025.pdf/
[11] https://chpexpress.com/project-overview/

New York winter peak loads increase due to heating electrification. Because this is when Quebec peak loads occur there is a high probability that power will not be available when NYC needs it.

3. Empire Wind, 816 MW offshore wind[12] – This project is under active construction and approximately 40% complete as of fall 2025. The project is progressing toward its targeted commercial operation date of 2027. However, summer peak loads occur during heat waves but the meteorological conditions that favor the warmest temperatures are high pressure systems that cause light winds. Those conditions will undoubtedly reduce offshore wind output. Without sufficient storage (which does not exist) this facility will not provide anywhere near 816 MW of power when it is needed most, and in fact will likely provide next to nothing at the times of peak need.

4. Propel NY Public Policy Transmission Project[13] - This is a major electric transmission infrastructure initiative developed jointly by the New York Power Authority (NYPA) and New York Transco LLC to strengthen the electric grid and enable greater renewable energy delivery across southeastern New York State. The infrastructure creates transmission capacity to deliver at least 3,000 megawatts (MW) of offshore wind energy from Long Island into the broader New

[12] https://www.empirewind.com/project/
[13] https://www.propelnyenergy.com/

York grid. This has the same limitation as the Empire Wind project, namely that without storage it will not provide energy when needed most. In addition, the federal opposition to additional offshore wind development means that the 3,000 MW of offshore wind will likely never exist.

The Q3 2025STAR report, with completely unjustified optimism, explains that these projects "could" address the identified reliability needs. Note however that there is a caveat that these projects must "demonstrate their planned power capabilities before the Gowanus and Narrows generating stations can be retired." Even then the STAR report mentions potential issues. The range in the demand forecast for expected weather is driven by key assumptions, such as population and economic growth, energy efficiency, the installation of behind-the-meter renewable energy resources, and electric vehicle adoption and charging patterns.

Even after the CHPE, Empire Wind, and the Propel NY Public Policy Transmission Project enter service and demonstrate their planned power capabilities there are concerns. The margins improve substantially assuming all existing generators remain available, but gradually erode as forecasted demand for electricity grows. Even with the future planned projects delivering power according to schedule, there remains a risk of a Zone J deficiency in summer 2029, following the deactivation of Gowanus and Narrows, assuming all other generators in Zone J are available.

These generation issues will not be resolved within the timeframe of this rate case. Additional generation can take between 4 and 15 years to install, depending on the type.

C. THE COMPANY HAS FAILED AND REFUSED TO PROVIDE A BREAKDOWN AS TO WHICH COSTS IN THE JP ARE TO SUPPORT "RELIABILITY AND SAFETY" VERSUS WHICH ARE TO SUPPORT INFEASIBLE CLIMATE ACT GOALS

Over the three-year period that it covers, the JP contains recommendations to provide ratepayer funding to the Company of approximately $13.7 billion to support capital investment, including cumulative incremental electricity delivery revenue of nearly $2 billion above current rates. However, nothing in the JP specifies or quantifies how much of the $2 billion of additional revenue, or of the total $13.7 billion capital spending, is intended to fund projects and programs necessary to support reliability and safety of the system, versus how much is for other purposes. Appendix 11 of the JP lists the various capital projects for which the Company claims to need funding. Nothing in Appendix 11 states which of these projects are necessary to support reliability and safety, and which are for other purposes, including the futile and wasteful purpose of chasing impossible and

infeasible “climate” goals that will not be relevant during the three-year rate period.

However, a document headed Summary of Joint Proposal, dated November 6, 2025, and filed on the docket of these proceedings, clearly states that the JP contains “provisions” for “funding” of matters *unrelated* to reliability and safety of the system. Thus, for example, the Summary of Joint Proposal states at pages 2-3:

> **Climate Leadership and Community Protection Act (“CLCPA”) Goals:** The Joint Proposal contains numerous provisions that are intended to further New York State’s ability to meet the goals of the CLCPA, including provisions or funding that will:
>
> . .
>
> • enhance the electric system in anticipation of transportation and building electrification;
>
> . . .
>
> • facilitate the clean energy transition;
>
> . . .
>
> • encourage the development of alternative heating options, including ground- and air-source heat pumps, through methods such as advanced rate option education and outreach tools;
>
> . . .

• enhance Information Technology systems and processes supporting the adoption and integration of renewable energy resources.

Therefore, we know that the JP contains funding for purposes not related to system reliability and safety; we just don't know how much. Whatever one may think about the merits of the "goals of the CLCPA" or the "clean energy transition" or "transportation and building electrification," these things are *not necessary to support the reliability and safety of the electricity system.*

One of the Independent Intervenors (Mr. Menton) asked in discovery for the Company to quantify how much of its proposed spending is intended to support CLCPA goals versus reliability and safety of its system, and the Company refused to answer responsively.

On November 10, 2025, Mr. Menton served on the Company a list of discovery questions asking the Company to quantify the amounts of added revenue in the JP that are intended to support the various items that are *not necessary* for system reliability and safety, and that are instead support goals that are impossible and/or infeasible. Specifically, Mr. Menton's discovery request asked the Company "how much added revenue is in the JP" relating to: "support[ing] the [CLCPA] goals"; "enhance[ing] the electric system in anticipation of transportation and building electrification"; "facilitate[ing] the green energy transition"; "encourage[ing] the development of alternative heating options,

including ground- and air-source heat pumps"; and "enhanc[ing] Information Technology systems and processes supporting the adoption and integration of renewable energy resources." Mr. Menton further posed an interrogatory asking the Company "what is the basis to believe that there will be sufficient electricity generation capacity to support the building and vehicle electrification projects" that are supported by projects funded by the JP.

The purpose of these interrogatories was to enable the Independent Intervenors to focus their objection on the cost of unnecessary and futile projects, versus objecting to the entire JP.

However, the Company, in its response of November 20, 2025, objected to these interrogatories, and provided only non-responsive information. To each interrogatory, the Company asserted the objection that it was "overbroad, vague, or otherwise seeks information that exceeds the scope of this proceeding." The only actual information provided by the Company in response to these interrogatories was a spreadsheet listing various investment projects and their costs. However, like Appendix 11 of the JP, the spreadsheet provides no information as to which of these projects and costs are necessary for system reliability and safety, versus which projects and costs are included to support infeasible and impossible "climate" goals. With respect to the question as to what is the basis to believe that there will be sufficient electricity available to support building and vehicle

electrification, the Company provided only an objection, and no substantive answer at all.

The Company's non-responses to these discovery requests, including both its objections and non-responsive spreadsheet, are attached as Exhibit 1 hereto.

The Independent Intervenors note that the Administrative Law Judges, in their own discovery requests to the Company issued on November 20, 2025 have asked a question (Number 6) that substantially overlaps with the questions that the Independent Intervenors posed:

> "6. Are all of the capital programs and projects proposed in the JP necessary for the Company to provide safe and reliable service? If not, explain why those programs and projects are included in the JP."

It is to be hoped that the Company will be more forthcoming in responding to the Administrative Law Judges than it has been in responding to the Independent Intervenors.

D. DUE TO THE EXISTING CHARACTERISTICS OF GENERATION AVAILABLE TO THE DOWNSTATE SYSTEM, PROCEEDING WITH BUILDING AND VEHICLE ELECTRIFICATION WILL LIKELY INCREASE RATHER THAN DECREASE GHG EMISSIONS IN THE COMPANY TERRITORY IN OPPOSITION TO THE GOALS OF THE CLCPA

The idea that GHG emissions in the Company territory can be reduced by proceeding with the electrification of buildings and vehicles is based on false metrics and incorrect data as to the means by which electricity is generated and will continue to be generated during the rate period and long after. When correct metrics and data are used, it becomes clear that building electrification in particular will increase rather than decrease GHG emissions, and vehicle electrification can have at best marginal impacts; and this will continue to be true until some unknown date in the distant future when far more emissions-free electricity becomes available than anybody knows how to generate and transmit to Zones J & K at present.

The Direct Testimony of David Lyon[14] (Environmental Defense Fund) includes a table describing the Company's Indirect GHG emissions assessment of its rate case filing at Exhibit (CETP-2-UPD), "with formatting adjusted for ease of presentation". See these and the third table at Ex. (DL-1) at p. 2-3.

[14] https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId=%7B80062397-0000-C82B-A895-7EF92E1907DF%7D

Figure 1: Source: Con Edison Ex. __ (CETP-2-UPD), Schedule 2, p1.

Indirect Carbon Emissions (GHG) Reductions (2026 through 2028)						
Category	**Source of Reduction**	**Program**	**Tons of CO2e Reduction**			
			2026	**2027**	**2028**	**Total**
Building Electrification (BE)	Electrification	Space/Water Heating, Cooking, and Clothes Drying	670,709	1,024,662	1,417,385	3,112,757
Electric Vehicles (EV)	Electric Vehicle Adoption	Vehicle Programs and Non-utility program adoption	789,851	1,136,183	1,547,141	3,473,175
Total			1,556,946	2,300,387	3,151,593	**6,585,932**

The indirect GHG emissions reductions listed in Figure 1 represent the GHG reductions for company programs in the building electrification and electric vehicle categories. However, these numbers are easily demonstrated to be incorrect. There is a significant inconsistency between these numbers and DPS estimates in the confidential JP settlement documentation that the Independent Intervenors have been unable to reconcile.

The main issue, and the likely reason for the discrepancy, is that the Indirect GHG emission reductions in Figure 1 do not account for the increased emissions caused by increased loads when buildings electrify and electric vehicles charge. The fact is that 95% of the electricity generated on the downstate system, and in the Company territory, comes from fossil fuels, mostly natural gas and, given the practical impediments to rapidly replacing that generation, nothing about the GHG emissions from electricity in the Company territory is going to change any time

soon. Also of concern, 90% of the generation in NY City is over 50 years old and NY State has the oldest generating fleet in the United States.

The most recent U.S. Environmental Protection Agency (EPA) eGRID2023 data[15] released on 6/12/2025 notes that New York City emissions average 864 lb./MWh. That data is included with our documentation as Exhibit 3. In other words for every MWh increase in load due to building electrification and electric vehicle charging caused by the Company's new programs 864 lb. of GHG emissions will be emitted. If the 7% average line losses getting the electrical energy to where it will be used are added in, that figure rises to 929 pounds per MWh.

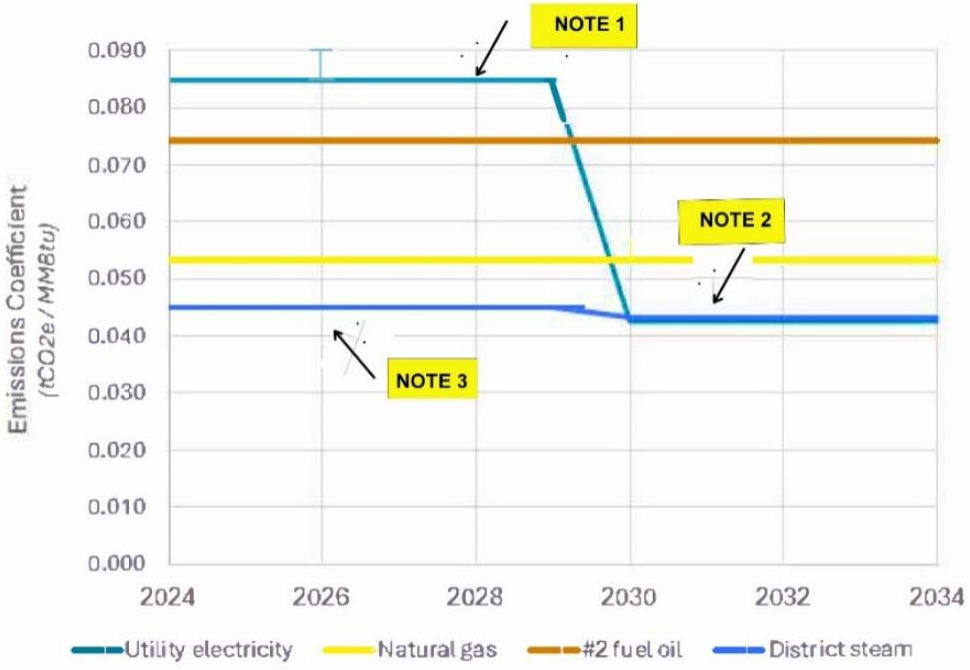
There is another issue associated with the Company Building Electrification (BE) and Transportation Electrification (TE) initiatives promoted in the rate case. Despite the Commission's Order, the City of New York (City) continues to push forward with implementation of Local Law 97 (LL97) using fictitious electric and district steam emissions coefficients to promote unsupportable BE, TE, and district steam usage as demonstrated below:[16]

[15] https://www.epa.gov/energy/greenhouse-gas-equivalencies-calculator-calculations-and-references

[16] LL97 Article 320 Info Guide, Version 1.4, 6/30/2025, Page 65 of 141 (highlighted notes added by us and explained below), https://www.nyc.gov/assets/buildings/pdf/article_320_guide.pdf

The following chart appears in the City's Guide for implementation of its Local Law 97 (building electrification mandate) explaining the GHG emissions that will be assumed for each method of providing energy to a building – utility electricity, natural gas, #2 fuel oil, and district steam. It can be seen that from 2029 to 2030, a very large drop is assumed in the GHG emissions from utility electricity, something that in fact is not happening and is not going to happen.

Figure 2: Assumed GHG emissions (in tCO2e) per MMBtu of energy consumed by a building



NOTE 1 - The 2025-29 emissions coefficient of 0.085 tCO2e/MMBtu established by LL97 for utility electricity corresponds to 640 lb/MWh[17], which is an entirely fictitious value.

The actual value for NYC and Westchester County is compiled by the U.S. Environmental Protection Agency (EPA), and the most recent dataset released on 6/12/2025 is 864 lb/MWh,[18] which is equivalent to 0.115 tCO2e/MMBtu.[19] In effect, NYC is mandating BE through LL97 based on an emissions coefficient that is less than 74% of the actual value, penalizing building owners[20] for fuel neutral options that are often more sustainable in reality. By comparison, onsite natural gas combustion has an emissions coefficient of 0.053 tCO2e/MMBtu which is the equivalent of 46% of the electric emissions coefficient.

NOTE 2 - The 2030-34 emissions coefficient of 0.045 tCO2e/MMBtu for utility electricity corresponds to 339 lb/MWh[21], which cannot be substantiated in any manner.[22] There is no basis to believe – indeed no possibility – that the real coefficient for utility electricity in 2030-2034 will be less than the 0.053 tCO2e/MMBtu coefficient for natural gas, and indeed the real coefficient for utility

[17] 0.085 x 2,205 x 3.413 = 640
[18] https://www.epa.gov/egrid/detailed-data, spreadsheet tab SRL23, column W, row 15
[19] 864 / 3.413 / 2,205 = 0.115
[20] LL97 Article 320 Info Guide, Version 1.4, 6/30/2025, Page 117 of 141, https://www.nyc.gov/assets/buildings/pdf/article_320_guide.pdf
[21] 0 .045 x 2,205 x 3.413 = 640
[22] The 15-E-0302 Commission Order determined electric emissions will increase by 4%, not decrease by 47%.

electricity will certainly be far above the 0.053 for natural gas through 2035 and far beyond.

NOTE 3 – Based on our knowledge and experience, the 2025 – 2034 emissions coefficient of 0.045 tCO2e/MMBtu established by LL97 for district steam is substantially understated as it fails to properly account for high pressure leaks, lost condensate, makeup water deaeration and deionization, and most importantly the loss of bottoming cycle (steam turbine) generation at the various Company powerplants. Additional discovery would be required to establish the true emissions coefficient – in the interim, we estimate the actual value at 0.10 tCO2e/MMBtu

The Independent Intervenors believe that these facts lead to only one possible conclusion. The Company's CLCPA implementation programs provide only marginal (at best) GHG emission reductions, and the building electrification programs, if implemented through 2035, and likely well beyond, will lead to increased rather than decreased CO2 emissions. This is because the New York City control area is primarily dependent upon fossil fuels to generate electricity and will continue to be so over the three rate years. Currently, only 5% of the Downstate installed capacity is "zero emissions"[23]. NY State's inability to build

[23] NYISO 2025-2034 Comprehensive Reliability Plan at https://www.nyiso.com/documents/20142/2248481/2025-2034-Comprehensive-Reliability-Plan.pdf/61984e49-f7a2-eeda-bdd3-176c5ae40ba9?t=1763732985009

either renewable generation in sufficient quantities or transmission to the Con Ed service area will make it exceedingly difficult if not impossible to increase that ratio in any material amount.

E. NEW YORK STATE HAS CONCEDED IN A JUDICIAL FILING THAT COMPLIANCE WITH THE CLCPA GHG MANDATES FOR 2030 IS "INFEASIBLE" DUE TO EXCESSIVE CONSUMER COST.

In a letter submitted in a court proceeding, the State of New York has made an official admission that the mandates of the CLCPA are "infeasible" to achieve. In March 2025, a group of environmentalist organizations, led by Citizens Action of New York, filed a lawsuit pursuant to CPLR Article 78 in Albany County Supreme Court, titled *Citizens Action of New York v. New York State Department of Environmental Conservation*, Index No. 902160-25. The lawsuit seeks an Order compelling DEC to comply with deadlines in the CLCPA, and specifically to comply with a deadline that was January 1, 2024, to issue regulations as to how the 2030 emission-reduction mandates of the CLCPA would be met. On August 11, 2025, the Attorney General's Office, representing the State and DEC in the matter, filed a letter[24] (the "August 11 Letter") responding to the Article 78 Petition.

[24] NYSCEF Doc. No. 91, Respondent-Defendant's supplemental letter submission dated August 11, 2025, in Index No. 903160-25, Supreme Court, Albany County

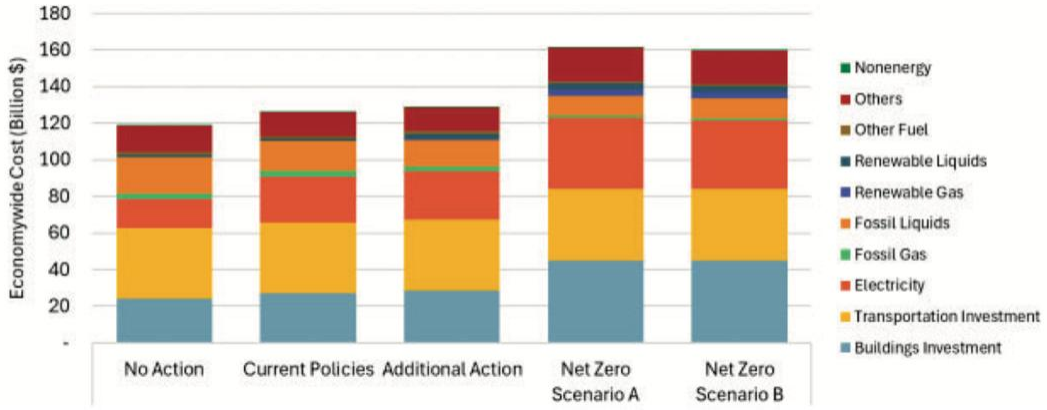
The August 11 Letter admits, on behalf of the State, that (1) the mandates of the CLCPA – and particularly the 2030 mandate for de-carbonization of the electricity system -- are "infeasible," and (2) that the reason the CLCPA mandates are infeasible is excessive costs that are "unaffordable for consumers" to bear. The August 11 Letter bases its statements on the State's Draft Energy Plan, issued July 25, 2025 by the State's Energy Planning Board. The following are excerpts from the August 11 Letter:

> *The draft [Energy Plan of July 25, 2025] itself shows that a 40% greenhouse gas reduction from 1990 levels by 2030 is infeasible under the Climate Act's accounting methodology and unaffordable for consumers. . . . [W]hile New York's current policies and additional action would be expected to raise economywide costs for the state energy system in 2040 by less than 10%, the two net zero scenarios the Board considered raise energy-system costs by at least 35% in 2040, which is $42 billion in additional costs for that year alone. . . . In sum, under even the most aggressive scenario the State Energy Planning Board considered—one that by 2040 would lead to an added $42 billion in annual energy costs—New York would not meet the Climate Act's 2030 goal. . . . Ordering achievement of the 2030 target would equate to even higher costs than the net zero scenarios and would affect consumers even sooner.*

The August 11 Letter[25], citing the State's Draft Energy Plan, demonstrates that it is completely possible to isolate the incremental costs of the electricity system attributable to attempting to meet the "net zero" mandates of the CLCPA.

In reaching the conclusion that attempting to meet the CLCPA's mandates by 2040 would cost "an additional $42 billion in annual energy costs," and that ordering the achievement of the CLCPA's 2030 target would "equate to even higher costs," the Attorney General and DEC relied on a Chart (Figure 3) that had originally appeared at page 34 of the Draft Energy Plan and was then reproduced into the August 11 Letter. The Chair of the Public Service Commission, Mr. Christian, is a member of the Energy Planning Board that issued this document.

Figure 3: Gross annual costs across scenarios in 2040 (2024$)



Source: Figure 35 from 16 Pathways Analysis Draft New York State Energy Plan July 2025

[25] NYSCEF Doc. No. 91, Respondent-Defendant's supplemental letter submission dated August 11, 2025, in Index No. 903160-25, Supreme Court, Albany County

The Chart quantifies the "gross annual costs by scenario" in "2024$" of five scenarios as of 2040, ranging from a "no action" scenario on the left to two "net zero" scenarios, "A" and "B," on the right. From visual inspection of the chart, the cost of the "no action" scenario is quantified as approximately $119 billion per year by 2040, while the costs of the two "net zero" scenarios are approximately $161 billion per year. The difference between $119 billion and $161 billion is the approximately $42 billion per year referenced in the August 11 Letter.

As demonstrated in the Chart, and as accepted by the State in the Energy Plan and in the August 11 Letter, it is completely possible to quantify which costs of the energy system are necessary to maintain reliability and safety of the system versus which are incremental costs attributable to pursuing CLCPA "net zero" carbon emission mandates. Not only is it possible to segregate which costs go in which category, but the State and the Energy Planning Board have in fact done that. If Mr. Christian can make these distinctions, then so can the Company and the DPS Staff.

Therefore, the Company's failure and refusal to specify which costs are in the "necessary for reliability and safety" category, and which are in the "pursuit of net zero energy transition mandates" category, are disingenuous and unacceptable.

F. PUBLICLY AVAILABLE DATA FROM ELSEWHERE IN THE WORLD DEMONSTRATES THAT ACHIEVEMENT OF THE CLCPA GHG REDUCTION MANDATES FOR ELECTRICITY GENERATION IS NOT ONLY INFEASIBLE, BUT ACTUALLY IMPOSSIBLE USING TODAY'S TECHNOLOGY IN ANY REASONABLE TIMEFRAME

Achievement of the net zero mandates of the CLCPA is not only "infeasible" as admitted in the August 11 Letter, but actually impossible. While the State and Attorney General used the term "infeasible" to characterize the attempt to meet the net zero mandates of the CLCPA, they could just as well have used the term "impossible," because achievement of those mandates is indeed impossible as a matter of mathematics and physics.

One of the Independent Intervenors, Mr. Menton, is the author of many dozens of articles on the subject of the possibility of achieving net zero emissions on an electrical grid powered principally by the intermittent renewables, wind and solar. Most of these articles have been published at his website, Manhattan Contrarian[26]. Among other things, these articles have analyzed the efforts of every jurisdiction in the world that has attempted to achieve CO2 emissions reductions in electricity generation, all of which have completely failed. Indeed, despite decades of effort in

[26] http://www.manhattancontrarian.com/

some cases, no jurisdiction in the world has succeeded in getting even 50% of its electricity consistently from wind and solar sources over the course of a full year.

One thing noted repeatedly in these articles is that there is no prototype or demonstration project of a predominantly wind/solar electricity system anywhere in the world operating without full fossil fuel (coal, natural gas, oil, or diesel) backup.

The closest thing in the world to a demonstration of the feasibility of a wind/storage system has been built on the island of El Hierro, one of the Canary Islands that is part of Spain. That project has been a total and abject failure, and thus instead of demonstrating how a wind plus storage system could work, it has demonstrated that a wind plus storage system *cannot* work except possibly at completely ruinous and impossible cost.

El Hierro is an island of about 10,000 people. It has average electricity demand of about 6 MW. To attempt to meet that demand without fossil fuel backup, they built five large wind turbines with total capacity of 12.5 MW (that is, more than double average demand), and a pumped storage system that could store some 270 MWh of energy (that is, about 45 hours of average demand). El Hierro is fortunate to have an extinct volcano rising straight up from the ocean with a large crater at the top at an elevation of about 2000 feet, ideal for use as a pumped storage reservoir. (New York State has no comparable geographic feature that could be used for a meaningfully-large pumped storage system.). The idea for the El Hierro system was

that when the wind blows to run the turbines at full capacity, there would be excess supply of energy that could be used to pump water uphill, and a hydroelectric power plant could then generate electricity at times of calm wind by releasing the water to fall back downhill.

The El Hierro wind plus storage power system opened to great fanfare back in 2015. But in ten years of operations it has never come close to supplying all of the electricity to meet the island's demand, and indeed it has struggled to achieve even 50% of the annual consumption of electricity on the island. Statistics for the operational results of the El Hierro wind/storage electricity system are publicly available at the website of the system operator by the name of Gorona del Viento, at www.goronadelvento.es. The most recent statistics, for the full 2024 year of operations[27] show that the wind plus storage system produced only 45% of the electricity for El Hierro. The remainder, 55%, was provided by a backup diesel generator, in other words, fossil fuels.

The takeaway for New York is that building intermittent generation capacity of double average usage, and 45 hours of storage, will only enable us to achieve less than 50% of electricity from the intermittent sources. For New York, double average usage would be some 40 GW of capacity. 45 hours of energy storage would be about

[27] https://www.goronadelviento.es/wp-content/uploads/2025/02/00-2024-CHGV24Parte_anual-contrata.pdf

900 GWh of energy storage. Governor Hochul currently has an "ambitious" plan to build some 24 GWh of energy storage over the course of several years, and at a cost of between $5 and $10 billion. But the El Hierro experience shows that that amount of storage is a drop in the bucket compared to what would be needed. 900 GWh of storage for us – proportional to what El Hierro has for its much smaller population – would cost close to $300 billion at the prices we are paying for Governor Hochul's storage program. This is far more than the State's budget for an entire year and, based on the El Hierro experience, would still only be enough to get us to less than half of our electricity usage from a wind and/or sun plus storage system, and which would be far insufficient to meet the CLCPA 70% mandate for 2030. Additionally, El Hierro is located much nearer to the Equator than New York. Annual temperatures vary between 55 deg-F and 75 deg-F so there is a minimal need for climate control of any type, either heating or air conditioning which greatly reduces energy use. Residents have no need for onsite thermal electrification of buildings beyond cooking and hot water. One of the largest additional electric loads in NY State is the proposed building electrification plan for heat. It has recently been paused by the Governor due to high costs.

To get to a goal of 100% of electricity from a predominantly wind/solar plus storage system (which is the CLCPA mandate for 2040), or even a 70% level (which is the CLCPA mandate for 2030) would require far larger amounts of energy storage,

sufficient to get through worst case wind and solar "droughts" that can last for a week or more in the dead of winter in New York. Mr. Menton is also the author of the definitive Report titled The Energy Storage Conundrum[28], on the subject of energy storage requirements to back up renewal generation from intermittent sources, without use of fossil fuel generators. That Report is dated December 1, 2022. The short answer is that the energy storage requirement for New York to actually achieve something close to net zero emissions from the electricity system would be in the range of 500 to 1000 hours of average use, which would be about 10,000 to 20,000 GWh – and substantially more if average use jumps with the building of new data centers and AI infrastructure. A figure of 1000+ hours of energy storage appears in the NYSERDA 6 GW Energy Storage Report. At a highly optimistic price of $200 per KWh, 10,000 GWh of energy storage would cost about $2 trillion – approximately equivalent to New York's entire annual GDP. At a price of $400 per KWh (still less than we are currently paying), and for 20,000 GWh of storage (a more realistic number to assure no crash), the cost would be around $8 trillion – a large multiple of New York's annual GDP. This certainly meets the definition of "impossible." Beyond the cost, with the exception of pumped hydro there is no storage technology capable of traversing the 6 month time frame from when renewable output would be at a maximum and when loads would be highest.

[28] https://www.thegwpf.org/content/uploads/2022/11/Menton-Energy-Storage-Conundrum.pdf

A reservoir and water supply that large are not feasible in NY State and a far smaller pumped storage system at Storm King Mountain failed after an 18 year court battle in 1980.

The calculations in the Energy Storage Conundrum Report are all based on basic arithmetic, and do not require any advanced engineering or mathematical knowledge to understand.

Energy storage is simply not a possible solution to make a wind/solar electricity system work. Given that fact, various New York entities, like NYISO, have started talking more and more about so-called Dispatchable Emissions Free Resources, or DEFRs, like hydrogen or nuclear. None of those currently exist at relevant scale or can exist in a time frame to meet the CLCPA mandates.

ARGUMENT

The JP is not just, it is not reasonable, and it is not in the public interest. It imposes very large costs – apparently billions of dollars of costs – on the Company ratepayers for purposes that are not related to providing reliable and safe electricity. Instead, the costs are supposedly justified by pursuing the CLCPA goals of reducing GHG emissions. But as shown above, the spending devoted to those goals will not reduce GHG emissions in any meaningful way, and if implemented would almost certainly lead to increases rather than reductions of GHG emissions. Moreover, the

GHG reduction goals of the CLCPA are nowhere near achievement, will not be achieved or even approached during the rate period of this case, have been admitted to be "infeasible" by the State, and are in fact impossible as a matter of mathematics, physics and huge costs beyond even the full GDP of New York State.

A. BEFORE CONSIDERING ANY RATE INCREASE, THE ALJS AND THE COMMISSION SHOULD FIRST REQUIRE THE COMPANY TO BREAK DOWN ITS REVENUE REQUESTS BETWEEN THOSE SUPPORTING RELIABILITY AND SAFETY VERSUS THOSE SUPPORTING CLIMATE ACT GOALS.

All signatory parties to the JP have joined together in a shocking effort contrary to the public interest to conceal from the public how much of this rate increase is devoted to support CLCPA goals, versus reliability and safety of the system. The CLCPA has constantly and endless been promoted to the public as something that is going to make their electricity and their lives cheaper and more affordable. And yet obviously, there now are large costs of the CLCPA that are being imposed on the public, but are not being disclosed to the public and are being intentionally hidden and concealed, including potentially billions of dollars of such costs in this case.

The incremental costs of CLCPA compliance that are buried in the JP in this case are eminently capable of segregation and disclosure. The State Energy

Planning Board, of which Mr. Christian is a member, have shown how that can be done in the State Energy Plan released in July. If Mr. Christian can make this segregation, then so can the Company, and it must be done in this proceeding.

B. ALL REVENUES INCLUDED IN THE JP THAT SUPPORT CLCPA GOALS AS OPPOSED TO SYSTEM RELIABILITY AND SAFETY SHOULD BE DISALLOWED AS PART OF ANY RATE INCREASE GRANTED TO THE COMPANY.

The Independent Intervenors object to allowance of any rate increase, or portion of any rate increase, to the extent that it supports CLCPA goals as opposed to system reliability and safety. Whatever one may think of CLCPA goals as aspirations, they are not being achieved on the schedule set. Company ratepayers should not be forced to pay for infrastructure to deliver electricity that does not exist and that will not exist during the time of this rate case, or for years or even decades thereafter. When and if the State can demonstrate that there will exist fully reliable low- or zero-emissions electricity in support of CLCPA goals, then and only then should the Company be allowed to increase rates to build facilities to deliver that electricity.

Since the Company has improperly refused to break down which of the revenues in the JP support the CLCPA goals versus reliability and safety, the Independent Intervenors object to the JP in its entirety. If and when the costs are

appropriately broken out, we would consider revising out objection to only object to the improperly included costs.

C. THE JP IS UNJUST, UNREASONABLE, AND CONTRARY TO THE PUBLIC INTEREST

There is nothing "just" or "reasonable" in:

- Imposing on the ratepayers billions of dollars of costs for purposes having nothing to do with system reliability or safety, and instead supporting goals that are infeasible (as admitted by the State itself) and impossible to achieve such that the public's funds will be completely wasted.
- Imposing huge costs on ratepayers to build new infrastructure for the delivery of new zero-emissions electricity that in fact does not exist and will not exist in this state during the time period of this rate case and for many years thereafter.
- Hiding and concealing potentially billions of dollars of costs in a rate increase that have nothing to do with system reliability and safety and instead are going for infeasible and impossible goals.
- Providing potentially billions of dollars of ratepayer funds to support electrification projects supposedly to reduce GHG emissions, but that will instead increase GHG emissions because of the characteristics of the system that cannot be changed in any relevant time frame.

The Commission's own guidelines for approving a settlement include such things as "fairly balance[ing] the interests of ratepayers, investors and the long-term soundness of the utility" and "whether the joint proposal provides a rational basis for the Commission's decision." This JP does the opposite of those goals. Rather than balancing the interests of the ratepayers and the utility, this JP grants the Company the ability to earn a guaranteed return for building completely useless and wasteful facilities, while the ratepayers pay through the nose for nothing of any use. And if there is a "rational basis" for the Commission to approve the construction of billions of dollars of facilities to deliver zero emissions electricity that does not exist, that rational basis completely escapes the Independent Intervenors.

If this JP is approved, it will represent the very epitome of an "arbitrary and capricious" decision that will need to be promptly reversed.

CONCLUSION

For the reasons stated above, the Independent Intervenors object to the JP in its entirety, and ask that it be rejected by the Commission.

Respectfully submitted,

Roger Caiazza
Richard Ellenbogen
Francis Menton
Independent Intervenors
November 26, 2025